

[1 EDW. 8. & *Pier and Harbour Order* [Ch. lxxi.]
1 GEO. 6.] (*Culag (Lochinver)*) Confirmation
Act, 1937.



CHAPTER lxxi.

An Act to confirm a Provisional Order made by the Minister of Transport under the General Pier and Harbour Act 1861 relating to Culag (Lochinver).
[13th July 1937.]

WHEREAS a Provisional Order made by the Minister of Transport under the General Pier and Harbour Act 1861 is not of any validity or force whatever until confirmation thereof by Act of Parliament:

And whereas it is expedient that the Provisional Order made by the Minister of Transport under the said Act as set out in the schedule to this Act be confirmed by Act of Parliament:

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Order as amended and set out in the schedule to this Act shall be and the same is hereby confirmed and all the provisions thereof in manner and form as they are set out in the said schedule shall from and after the passing of this Act have full validity and force.

2. This Act may be cited as the Pier and Harbour Order (Culag (Lochinver)) Confirmation Act 1937.

A.D. 1937.

SCHEDULE.

CULAG (LOCHINVER) PIER.

Order for the maintenance and regulation of Culag (Lochinver) Pier in the county of Sutherland for authorising the levying of rates and dues in respect thereof and for other purposes.

Preliminary.

- Short title. 1. This Order may be cited as the Culag (Lochinver) Pier Order 1937.
- Commencement. 2. This Order shall come into operation upon the day when the Act confirming this Order is passed and that day is in this Order referred to as "the commencement of this Order."
- Interpretation. 3. In this Order the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated with this Order have the same respective meanings unless there be something in the subject or context repugnant to such construction And in this Order unless the context otherwise requires—
- 10 & 11 Vict.
c. 27. "the Harbours Clauses Act 1847" means the Harbours Docks and Piers Clauses Act 1847;
- "the pier" means the existing pier situate in the parish of Assynt in the county of Sutherland known as Culag (Lochinver) Pier and the land buildings works plant property and conveniences connected therewith or any part thereof as the case may be;
- "the undertaking" means the undertaking of the Undertakers in connection with the pier;
- "authorised rates" and "authorised rate" mean respectively the rates or rate which the Undertakers are for the time being authorised to levy demand and recover in pursuance of this Order;
- "the Minister" means the Minister of Transport;
- "vessel" includes a seaplane on the surface of the water;
- "seaplane" includes a flying boat and any other aircraft designed to manœuvre on the water.

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Undertakers and Incorporation of Acts.

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4. Ronald Arthur Vestey of Assynt in the county of Sutherland and his successors in title or other the owner for the time being of the pier shall be the Undertakers for carrying this Order into execution and are in this Order referred to as "the Undertakers."

Undertakers.

5.—(1) The Lands Clauses Acts (except so much thereof as relates to the purchase and taking of land otherwise than by agreement and to the entry upon lands by the promoters of the undertaking and with the exception of sections 120 to 126 of the Lands Clauses Consolidation (Scotland) Act 1845 relating to the sale of superfluous lands) are hereby incorporated with this Order.

Incorporation of
Lands
Clauses Acts.

8 & 9 Vict.
c. 19.

(2) For the purposes of the incorporation of the said Acts the expression "the special Act" in those Acts shall mean this Order.

6.—(1) In the application to this Order of the Harbours Clauses Act 1847 the word "vessel" shall include a seaplane on the surface of the water and the expression "the special Act" shall mean this Order. Provided that nothing in the Harbours Clauses Act 1847 or this Order shall authorise a piermaster or other officer to require the dismantlement of a seaplane or any part thereof or the making of any alteration whatever of the structure or equipment of a seaplane.

Application
of Harbours
Clauses Act
1847.

(2) Sections 12 13 16 to 19 25 26 84 and 85 of the Harbours Clauses Act 1847 shall not be incorporated with this Order.

Acquisition of Lands.

7. Subject to the provisions of this Order the Undertakers may by agreement purchase and hold for the purposes of this Order any lands not exceeding in the whole ten acres but nothing in this Order or in the Acts incorporated therewith shall exempt the Undertakers from any proceedings for nuisance in the event of any nuisance being caused or permitted by them thereon.

Power to
take lands
by agree-
ment.

8. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may subject to the provisions of those Acts and of this Order grant to the Undertakers for the purposes of this Order any servitude right or privilege (not being a servitude right or privilege of water in which other persons than the grantors have an interest) in over or affecting any such lands and the provisions of the said Acts with respect to lands and feu duties or ground annuals so far as the same are applicable in this behalf shall extend and apply to such grants and to such servitudes rights and privileges respectively.

Certain
persons may
grant
servitudes
&c.

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Power to
retain and
sell lands.

9.—(1) Notwithstanding anything in the Lands Clauses Acts to the contrary the Undertakers may retain hold and use for such time as they may think fit or may sell let lease exchange or otherwise dispose of in such manner and for such consideration and on such terms and conditions as they may think fit and in case of sale either in consideration of the execution of works or of the payment of a gross sum or of an annual rent or of any payment in any other form any lands and premises or any interest therein vested in them as part of the undertaking or acquired by them under this Order which may not be required for the purposes thereof and may sell exchange or dispose of any rents reserved on the sale exchange lease or other disposition of such lands and premises and may make do and execute any deed act or thing proper for effectuating any such sale lease exchange or other disposition and on any exchange may give or take any money for equality of exchange.

(2) Nothing in this section contained shall release the Undertakers or any person purchasing or acquiring any lands from them under this section from any rents covenants restrictions reservations terms or conditions made payable by or contained in any conveyance lease or other deed or instrument by which any such lands were or may hereafter be conveyed or leased to or otherwise acquired by the Undertakers or any person from or through whom the Undertakers may have derived or may hereafter derive title to the same but all such rents covenants restrictions reservations terms and conditions shall remain and be of as full force and effect and may be recovered exercised enjoyed and enforced in like manner and to the same extent as if the Act confirming this Order had not been passed.

Limits.

Limits of
pier.

10. The limits within which the Undertakers shall have authority and within which the powers of the piermaster may be exercised and within which the power to levy rates may be exercised shall comprise the pier and an area below high-water mark within a distance of one hundred and fifty yards from any part of the pier which limits are in this Order termed "the limits of the pier."

Works and Powers.

Power to
maintain
and improve
pier.

11.—(1) Subject to the provisions of this Order the Undertakers may within the limits of the pier maintain restore reconstruct widen alter improve and extend the pier and in connection therewith may from time to time construct erect maintain alter and improve all necessary jetties landing-places approaches roads sewers drains watercourses cuts gas and water

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pipes electric light and power works steps warehouses offices
sheds garages and other buildings cranes weighing machines
machinery moorings buoys and other works apparatus and
conveniences and may also from time to time lay down and
maintain rails tramways and turntables on and along the pier : A.D. 1937.
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Provided that no works below high-water mark shall be
constructed without the consent in writing of the Board of
Trade having been first obtained.

(2) A line of rails or tramway constructed under the powers
of this Order shall not be used for the public conveyance of
passengers unless and until the Minister is satisfied that such
line is fit for that use.

(3) Any electric light and power works and other works
or apparatus constructed and maintained under this Order
shall be so constructed used and maintained as to prevent any
interference with any telegraphic line (as defined by the Tele- 41 & 42 Vict.
graph Act 1878) belonging to or used by the Postmaster- c. 76.
General or with telegraphic communication by means of any
such line.

(4) Nothing in this Order shall extend to or authorise
any interference with any works of any undertakers within
the meaning of the Electricity (Supply) Acts 1882 to 1936 to
which the provisions of section 15 of the Electric Lighting Act 45 & 46 Vict.
1882 apply except in accordance with and subject to the provisions c. 56.
of that section.

12. The Undertakers may from time to time construct and
maintain on the pier and may furnish and equip fishing-platforms
pavilions saloons assembly concert lecture waiting refreshment
reading and other rooms automatic machines bicycle-stands band-
stands shops bazaars kiosks aquaria lavatories baths and sanitary
and other conveniences and they may also construct under the
pier head and maintain floating swimming baths and may make
such reasonable charges as they may determine for the use of such
conveniences and for admission to such buildings or places as
aforesaid : Power to
erect pavi-
lions and
other
buildings.

Provided that no works below high-water mark shall be
constructed without the consent in writing of the Board of Trade
having been first obtained.

13.—(1) The Undertakers may deepen dredge scour and
excavate any portion of the foreshore and bed of the sea to the
extent necessary to secure a sufficient waterway and approach
to the pier for vessels using the same. Power to
dredge.

(2) All sand mud and other materials dredged up or removed
for the purposes and to the extent aforesaid shall be the property

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A.D. 1937. of the Undertakers and they may sell or otherwise dispose of or remove or deposit the same as they think fit Provided that no sand mud or other material shall be laid down or deposited in any place below high-water mark without the consent in writing of the Board of Trade having been first obtained.

(3) The powers of the Undertakers under this section shall be exerciseable subject to the provisions of the section of this Order of which the marginal note is " Crown rights " and in particular and without prejudice to that general limitation any consent given to the exercise of such powers by the Commissioners of Crown Lands or the Board of Trade on behalf of His Majesty may be given subject to such restrictions and conditions including the payment by the Undertakers to the Commissioners of Crown Lands or the Board of Trade of royalties rents or sums of money in respect of materials raised from any place below high-water mark and sold by the Undertakers under this section or in respect of any place below high-water mark upon which materials may be deposited as may be fixed by the Commissioners of Crown Lands or the Board of Trade as the case may be.

Power to
purchase
dredgers
&c.

14. The Undertakers may provide purchase take on lease hire and use such steam or other dredgers eroders engines lighters or other vessels machinery and apparatus as they may think necessary for effecting the purposes of this Order and may let the same on hire for such sums and upon and subject to such terms and conditions as they may think fit or may sell or dispose of the same All sums received in respect of any such letting on hire shall be deemed to form part of the revenue of the undertaking and all moneys realised by any such sale shall be applied towards carrying into effect any of the purposes of this Order to which capital is properly applicable.

Restrictions
on mooring.

15. Subject to the provisions of section 33 of the Harbours Clauses Act 1847 no vessel or boat of any kind shall be moored or attached alongside or to the pier without the consent of the Undertakers or the piermaster.

Rates.

Power to
levy rates.

10 & 11
Geo. 5. c. 80.

16. The Undertakers may within the limits of the pier subject and according to the provisions of this Order levy and demand for the use of the pier and the conveniences connected therewith and subject to the provisions of the Air Navigation Act 1920 and any Act amending or extending that Act or of any Order made in pursuance thereof in respect of seaplanes using the pier such reasonable rates as may from time to time be approved by the Minister and in respect of all other vessels persons and goods of every description and for services described

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in the schedule to this Order any rates not exceeding those specified in that schedule and they may receive and recover payment accordingly. A.D. 1937.
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17. The Undertakers may confer vary or extinguish exemptions from and compound with any person with respect to the payment of the rates or charges authorised by this Order but so that no preference be in any case given to any person over any other person using the pier under the like circumstances and that anything done under this section shall not prejudice the other provisions of this Order. Power to vary exemptions and compound for rates.

18. The Undertakers may take such rates as they think proper for the supply and removal of ballast for the accommodation of vessels. Rates for ballast.

19. If and so long as the Undertakers shall make and maintain such provision and appliances as may be necessary for furnishing to vessels resorting to the pier a supply of pure and wholesome drinking water they shall be entitled to make and recover such reasonable charges as they may think fit not exceeding the rates specified for that purpose in the schedule to this Order for water supplied by them. Undertakers may supply and charge for water.

20. The Undertakers may (in any case where the rates specified in the schedule to this Order do not apply) demand and recover such reasonable rates or other consideration as they may determine for the use of any warehouses sheds garages car parks stances buildings yards weighing machines mooring posts cranes buoys works and conveniences belonging to or provided by the Undertakers or in respect of any services rendered by them in connection with the pier. Rates for services and accommodation not otherwise provided for.

21. No pass ticket or payment of rates payable under this Order for the use of the pier shall entitle the holder of the pass ticket or the person paying to the use of the buildings and erections on the pier or any of them or any part of the pier which is set apart for a particular purpose unless the Undertakers otherwise determine. Payment of rates not to confer right to use buildings.

22.—(1) The master or owner of any vessel (not being a pleasure boat) with a take or cargo of fish shall on the arrival of the vessel within the limits of the pier forthwith furnish to the collector of rates a true and accurate statement of his take or cargo of fish and the name of every person obtaining delivery thereof. Master of fishing vessel to report take of fish.

(2) If the master or owner of a vessel fails to comply with this section he shall for each offence be liable to a penalty not exceeding ten pounds.

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Piermaster
may prevent
sailing of
vessels.

23. The piermaster may prevent the removal or sailing from the limits of the pier of any vessel in respect of which or of the goods imported or exported therein any rates are payable until evidence has been produced to him of the payment of those rates to the collector and in the case of a vessel with a take or cargo of fish until the master or owner of the vessel has given in the account of his take or cargo of fish required by this Order.

Certain
fishing
vessels under
stress of
weather
exempt from
rates.

24. Fishing vessels belonging to countries with which for the time being treaties exist exempting from duties and port charges those vessels when forced by stress of weather to seek shelter in the ports or on the coast of the United Kingdom shall when forced by stress of weather to make use of the pier and not breaking bulk while making use thereof be exempt from rates leviable under this Order.

Exemption
of lifeboat
crew.

25. All persons going to or returning from any lifeboat or using any apparatus for saving life and being persons either belonging to the crew of the lifeboat or to the coastguard or being persons for the time being actually employed in saving life or in exercising or using the lifeboat or the apparatus for saving life and all persons brought ashore from any vessel in distress shall at all times have free ingress passage and egress to along and from the pier.

Power to
charge
higher rates
at certain
times.

26.—(1) Notwithstanding anything contained in this Order the Undertakers may charge for every person entering upon and using the pier between the hours of six p.m. and ten p.m. on any day on which a concert or other public entertainment (lasting for at least one and a half hours between the said hours of six p.m. and ten p.m.) is held on the pier or in any pavilion building or room for the time being on the pier any sum not exceeding sixpence.

(2) Any person who having already paid the ordinary charge for using the pier remains on the pier after six p.m. on any such day as in the preceding subsection mentioned shall have credit for the sum already paid by him and shall be liable in addition thereto to pay only the difference between the special charge and the sum already paid by him as aforesaid.

(3) The Undertakers shall notwithstanding the progress of any concert or other public entertainment reserve a sufficient passage along the pier for all persons landing or embarking at the pier or jetties and that reserved passage shall be open for use by such persons at the ordinary charge and without payment of the special rate by this section authorised so long as they use the pier as a passage only and do not remain upon it.

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(4) A copy of this section shall be exhibited in print at the entrance to the pier and in some conspicuous place or places on the pier. A.D. 1937.
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27.—(1) The Undertakers may on any special occasions but not on more than twelve days in any one year or for more than three days consecutively close the pier or any part thereof against the public and may on such occasions admit any person to the pier or such part on payment of such special rates of admission not exceeding one shilling for each person as the Undertakers may determine. Power to close pier on special occasions.

(2) On all such occasions the Undertakers shall reserve a sufficient passage along the pier between the landing steps and the shore for any persons landing or embarking at the pier the reserved passage to be open for use by those persons at the ordinary charge and without payment of any special rates so long only as they use the pier as a passage and do not remain upon it.

(3) The special rate charged under this section shall be in lieu of and not in addition to the rate specified in the schedule to this Order and any person paying the special rate shall not be liable to pay any further or other rate or sum for admission to the pier on the day for which the special rate is charged.

(4) During at least two days before the day on which the pier is to be closed the Undertakers shall exhibit conspicuously at the entrance to the pier a notice of their intention to close the pier under this section.

28.—(1) The Undertakers may grant pass tickets or family tickets to passengers and promenaders or others for the use of the pier (either inclusive or exclusive of admission to any building or room for the time being thereon) at such rates on such terms and for such periods not exceeding one year as the Undertakers may determine and may issue books containing any number of pass tickets at a reduced rate and day tickets available for one day or part of a day only for any number of admissions on such day or part of a day at a reduced rate but so that no preference be given to any person. Pass and family tickets.

(2) The Undertakers shall have power to prescribe the conditions on which pass tickets and family tickets are issued and the persons by whom such tickets may be used.

(3) A pass ticket shall not be transferable and shall not be used by any person except the person to whom it is granted. A pass ticket or family ticket shall not be used otherwise than in accordance with the conditions on which it is issued or after the period limited for its use.

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(4) There shall be printed on every pass ticket and family ticket the terms and conditions upon and subject to which the same is issued.

(5) If any person wilfully and with intent to defraud acts in any way in contravention of the provisions of this section or uses or attempts to use any false or counterfeit ticket he shall for each offence be liable to a penalty not exceeding twenty shillings.

Revision of
rates.

29.—(1) If it is represented by application in writing to the Minister—

(a) by any chamber of commerce or shipping or any representative body of traders or any person who in the opinion of the Minister is a proper person for the purpose; or

(b) by the Undertakers;

that under the circumstances then existing the authorised rates or any of them should be revised the Minister if he thinks fit may make an order revising the authorised rates referred to in the application or any of them and may fix the date as from which such order shall take effect and thenceforth such order shall remain in force until the same expires or is revoked or modified by a further order of the Minister made in pursuance of this section.

(2) An application made to the Minister under this section shall be accompanied by such information and particulars as the Minister may consider relevant certified in such manner as he may require.

(3) Where upon an application for revision of authorised rates or an authorised rate an order has been made or the Minister has decided not to make an order no further application for a revision of the rates or rate to which the application related shall be made within twelve months from the date of such order or decision as the case may be.

(4) Before making an order under subsection (1) of this section the Minister shall cause an inquiry to be held in reference thereto and the provisions of the section of this Order of which the marginal note is "Inquiries by Minister" shall apply to such inquiry as if it were an inquiry held in pursuance of that section:

9 & 10 Geo.5. Provided that the person appointed to hold the inquiry shall
c. 50. be the rates advisory committee constituted under the Ministry of
10 & 11 Transport Act 1919 or any sub-committee thereof to which the
Geo. 5. c. 21. said advisory committee may under section 2 of the Harbours
Docks and Piers (Temporary Increase of Charges) Act 1920 have
delegated their powers or if the said advisory committee cease to
exist some persons with similar qualifications to be appointed for
the purpose by the Minister.

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Powers of Transfer Sale and Leasing.

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30.—(1) Subject to the previous consent in writing of the Minister the Undertakers may transfer the undertaking to a limited company registered under the Companies Acts or to any firm authority corporation or person and the company firm authority corporation or person to whom the transfer is to be made may take a transfer of the undertaking upon such terms conditions and restrictions as may be approved by the Minister.

Power to
transfer
undertaking.

(2) On any such transfer the rights powers liabilities and obligations of the Undertakers in respect of the undertaking shall be transferred to and may be exercised by and shall attach to the company firm authority corporation or person to whom the transfer is made and that company firm authority corporation or person shall subject to the provisions of this Order become the Undertakers for the purposes of this Order.

31.—(1) The Undertakers may with the previous consent in writing of and upon such terms conditions and restrictions as may be approved by the Minister sell the undertaking and the purchaser to the extent authorised by the conveyance shall have and may exercise all or any of the powers conferred upon the Undertakers by this Order or which the Undertakers have or might exercise under this Order and shall be subject to all the liabilities and obligations to which the Undertakers are subject and shall perform all the duties of the Undertakers under this Order.

Power to sell
undertaking.

(2) The Undertakers shall within one month after the date of any conveyance made under this section deposit a certified copy thereof at the Ministry of Transport and shall upon failure to do so be liable to a penalty not exceeding twenty pounds.

32.—(1) The Undertakers may with the previous consent in writing of and upon such terms conditions and restrictions and for such period as may be approved by the Minister lease to any company firm authority corporation or person (a) the undertaking or any part thereof or (b) the right to collect and retain the authorised rates.

Power to
lease under-
taking or
rates.

(2) As from the date of any lease made under the last preceding subsection the lessee during the continuance of and to the extent provided in such lease shall have and may exercise all or any of the powers conferred upon the Undertakers by this Order which the Undertakers have or might exercise under this Order and shall be subject to all the liabilities and obligations to which the Undertakers are subject and shall perform all the duties of the Undertakers under this Order.

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(3) No lease made under subsection (1) of this section shall be assignable without the previous consent in writing of the Minister and the provisions of this Order with respect to such lease and to the lessee shall apply to any such assignment and to the assignee respectively.

(4) The Undertakers shall within one month after the date of any lease made under this section deposit a certified copy thereof at the Ministry of Transport and shall upon failure to do so be liable to a penalty not exceeding twenty pounds.

(5) No lease made under this section shall be made in consideration or part consideration of any fine premium or other capital sum.

(6) Nothing in this section shall exempt the Undertakers from their obligation to keep and render accounts and as from the date of any lease made under this section all the provisions of the Acts incorporated with this Order and of this Order as to the keeping delivery and audit of accounts shall apply to and be binding upon as well the lessee as the Undertakers and all moneys received by the Undertakers under or in respect of any such lease shall be deemed to be moneys levied by virtue of and income received under this Order.

Power to
lease
pavilions &c.

33. The Undertakers may let for hire or lease for any term not exceeding seven years any pavilions rooms shops baths sheds warehouses or other buildings separately from any other part of the undertaking to any company firm authority corporation or person upon such terms pecuniary or otherwise and under such restrictions and conditions as they may determine.

Finance.

Power to
borrow.

34.—(1) The Undertakers may on the security of the undertaking or the authorised rates borrow and re-borrow or expend out of their own money at interest not exceeding seven per centum per annum—

(a) such sum as may be required for the payment of the costs charges and expenses of and incident to the preparing and obtaining of this Order;

(b) with the consent of the Minister such further sum or sums as may from time to time be required for any of the purposes of the undertaking for which capital money may properly be applied and not otherwise:

Provided that the total amount borrowed under the provisions of this section shall not exceed six thousand pounds.

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(2) The Undertakers may accept and take from any bank or banking company credit for any amount not exceeding in the whole the said sum of six thousand pounds in respect of the undertaking on a cash account to be opened and kept in the name of the Undertakers according to the usage of bankers in Scotland but so that the whole sum owing by the Undertakers on such cash account and for other money borrowed under this Order and for the time being unpaid shall not exceed in the whole the said sum of six thousand pounds exclusive of interest.

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(3) The Undertakers may grant bonds and assignations of the rates in security of the repayment of the sum or sums so borrowed or expended or of the amount of such credit or of the sums advanced from time to time on such cash account with interest thereon respectively and such bonds and assignations and any transfers thereof may be in the forms contained in Schedules (B) and (C) annexed to the Burgh Harbours (Scotland) Act 1853 or to the like effect and shall be recorded in the Division of the General Register of Sasines at Edinburgh applicable to the county of Sutherland.

16 & 17 Vict.
c. 93.

35. All money raised under this Order shall be applied only to purposes to which capital is properly applicable.

Application
of money.

36. Any person advancing money to the Undertakers shall not be bound to require any further or other evidence of the power of the Undertakers to borrow the money advanced by such person than such as is afforded by a certificate signed by the Undertakers that they are not exceeding the powers of borrowing conferred on them by this Order.

Protection
of lenders.

37.—(1) The holder of any security given in respect of money borrowed under this Order may enforce payment of arrears of interest or principal or principal and interest due on his security by the appointment of a judicial factor. In order to authorise the appointment of a judicial factor in respect of the arrears of principal the amount owing to the security holder by whom the application for a judicial factor is made shall not be less than one-tenth of the amount for the time being borrowed by the Undertakers.

Appointment
of judicial
factor.

(2) Sections 86 and 87 of the Commissioners Clauses Act 1847 shall be incorporated with this Order and in such sections as so incorporated the expression "commissioners" shall mean the Undertakers the expression "receiver" shall mean judicial factor and the expressions "mortgage" and "mortgagee" shall respectively include any security for money borrowed under this Order and the holder of any such security.

10 & 11 Vict.
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Application
of revenue.

38. All moneys received from rates or otherwise as income under this Order shall be applicable to payment of the expenses properly chargeable to revenue of the maintenance repair and management of the undertaking and all conveniences connected therewith and the surplus (if any) after providing for the purposes aforesaid shall belong to the Undertakers for their own use.

Annual
account to be
sent to
Minister.
25 & 26 Vict.
c. 19.

39.—(1) The Undertakers shall within two months after the date to which their annual accounts and balance sheet are made up send a copy of the same to the Minister and section 16 of the General Pier and Harbour Act 1861 Amendment Act shall apply to and include the Undertakers and any and every such accounts.

(2) The Undertakers shall as from the expiration of that period be liable to a penalty not exceeding twenty pounds for every week or part of a week during which they refuse or neglect to comply with the provisions of subsection (1) of this section.

(3) The accounts of the Undertakers referred to in this section and in section 50 of the Harbours Clauses Act 1847 respectively shall be made up to the end of the thirty-first day of March in each year.

Byelaws.

Byelaws.

40.—(1) The byelaws which may from time to time be made by the Undertakers in exercise of the powers in that behalf conferred on them by section 83 of the Harbours Clauses Act 1847 may provide for the imposing of a penalty not exceeding forty shillings for the breach or non-observance of any of the byelaws.

(2) No byelaw shall come into operation until it has been confirmed by the confirming authority.

(3) The confirming authority shall be the Minister :

Provided that in the case of any byelaws which in the opinion of the Minister and the Board of Trade primarily concern the interests of navigation the provisions of subsections (1) and (3) of this section shall apply as if the said Board were substituted for the Minister.

(4) Confirmation of any such byelaws by the Minister or the Board of Trade respectively shall be sufficient evidence of compliance with the provisions of this section.

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1 GEO. 6.] (*Culag (Lochinver)*) *Confirmation*
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41. The Undertakers may appoint officers for securing the observance of the byelaws and regulations made by the Undertakers under this Order in respect of the pier and may from time to time procure such officers to be sworn as constables for that purpose but no such officers shall act as constables until so sworn and unless in uniform or provided with a warrant.

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—
Appoint-
ment of
officers to
enforce bye-
laws and
regulations.

Inquiries.

42.—(1) The Minister may cause to be held such local inquiries as he may consider necessary in regard to the exercise of any powers or duties conferred or imposed upon him and the giving of any consent or approval or the making of any order or the confirmation of any byelaw under this Order.

Inquiries by
Minister.

(2) For the purpose of any such inquiry the person appointed to hold the inquiry may require any person to attend to give evidence or to produce any documents in his custody or under his control which relate to any matter in question at the inquiry and may take evidence on oath and for that purpose administer oaths or may instead of administering an oath require the person examined to make and subscribe a declaration of the truth of the matter respecting which he is examined :

Provided that—

- (a) no person shall be required to go more than ten miles from his place of residence unless the necessary expenses of his attendance are paid or tendered to him ; and
- (b) nothing in this section shall empower the person holding the inquiry to require the production of the title or any instrument relating to the title of any land not being the property of the Undertakers.

(3) Every person who refuses or wilfully neglects to attend when required to do so in pursuance of this section or to give evidence or who wilfully alters suppresses conceals destroys or refuses to produce any book or other document which he may be required to produce for the purposes of this section shall be liable to a penalty not exceeding fifty pounds or to imprisonment for a term not exceeding six months or to both such penalty and imprisonment.

(4) Where the Minister causes any such inquiry to be held the costs and expenses incurred by him in relation to that inquiry (including such reasonable sum not exceeding five guineas a day as he may determine for the services of any officer engaged in the inquiry) shall be paid by the Undertakers or party to the inquiry as the Minister may direct and he may certify the amount of the

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A.D. 1937. — costs and expenses so incurred and any amount so certified and directed by the Minister to be paid by the Undertakers or person shall be recoverable from the Undertakers or person as a debt to the Crown.

(5) The Minister may make orders as to the costs and expenses of the parties to any such inquiry and as to the parties by whom such costs and expenses shall be paid.

Life-Saving Apparatus.

Provision
for life-
saving
apparatus.

43.—(1) The Undertakers shall whenever required by the Board of Trade provide at their own expense and to the satisfaction of the Board of Trade a site near the pier and build on that site a house and other proper accommodation for a lifeboat rocket apparatus and other life-saving apparatus.

(2) If the Undertakers fail to comply with this section they shall be liable to a penalty not exceeding ten pounds for every month during which the failure continues.

Life-saving
apparatus
may be
attached to
pier.

44. The officers of the coastguard and all other persons for the time being actually employed in connection with the lifeboat or the apparatus for saving life may either permanently or temporarily without payment attach or cause to be attached to any part of the pier spars and other apparatus for saving life and may also either in course of using or of exercising the apparatus for saving life fire rockets over the pier.

Lifebuoys to
be kept.

45. The Undertakers shall at all times keep at convenient places on the pier and in obedience to any requirements which may be made by the Board of Trade lifebuoys and life lines in good order and fit and ready for use.

Wrecks.

Removal of
sunk
stranded or
abandoned
vessels.

46.—(1) Whenever any vessel is sunk stranded or abandoned within the limits of the pier or in or near any approach thereto the Undertakers may cause that vessel to be raised or removed or to be blown up or otherwise destroyed so as to clear the pier and its approaches therefrom.

(2) The Undertakers may cause any such vessel and the furniture and tackle and apparel thereof or any part thereof respectively which shall be raised or salved and also all or any part of the cargo goods chattels and effects which may be raised or salved from any such vessel to be sold in such manner as they think fit (subject to such notice being given of the intended sale as is prescribed by the first proviso to section 530 of the Merchant Shipping Act 1894) and out of the proceeds of sale

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c. 60.

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may reimburse themselves for the expenses incurred by them under this section and also for any expenses incurred by them in marking buoying watching lighting or otherwise controlling the vessel and shall hold the surplus (if any) of the proceeds of the sale in trust for the persons entitled thereto : A.D. 1937.

Provided that the Undertakers shall before selling any such cargo goods chattels or effects as aforesaid pay all duties which may be payable to His Majesty in respect of the cargo goods chattels or effects to be sold and they may retain the amount of the duties so paid out of the proceeds arising from the sale of such cargo goods chattels or effects.

(3) If the proceeds of the sale are insufficient to reimburse the Undertakers for the aforesaid expenses and duties the Undertakers may recover as a civil debt the deficiency or in case of an appeal under subsection (4) of this section such sum as is awarded by the arbiter to be payable in respect of the deficiency from the person who at the time of the sinking stranding or abandonment of the vessel was the registered owner thereof or from the executors or administrators of such owner.

(4) If on demand being made under this section for payment of any deficiency the person on whom the demand is made is dissatisfied with the amount demanded he may within fourteen days after the receipt of the demand appeal to the Board of Trade who shall appoint an arbiter to determine and award whether any and if so what sum is payable in respect of the deficiency and the award of the arbiter appointed by the Board of Trade that no sum is payable or as to the sum payable (as the case may be) shall be conclusive and binding on both parties. The costs of the appeal and the award shall be in the absolute discretion of the arbiter and he shall award and order how those costs are to be borne and paid and any costs so awarded and ordered to be paid by either party may be recovered by the other party in the same manner as the sum payable in respect of the deficiency is recoverable under subsection (3) of this section.

(5) The powers given to the Undertakers under subsection (1) of this section shall not be exercised in respect of a vessel if the registered owner thereof within twenty-four hours after the sinking stranding or abandonment of the vessel takes such steps as may in the opinion of the piermaster be necessary for the raising or removal thereof and does all things necessary to raise and remove the vessel as speedily as possible.

(6) The powers conferred by this section on the Undertakers shall be in addition to and not in derogation of any other powers exerciseable by them for or with respect to the removal of wrecks.

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(7) Except for the purpose of removing any obstruction to the pier nothing in this section shall entitle the Undertakers to remove any wreck (as defined by section 510 of the Merchant Shipping Act 1894) to the prejudice or in derogation of the rights with respect to such wreck of the receiver of wreck under the provisions of Part IX of the said Merchant Shipping Act and if the Undertakers shall for any such purpose as aforesaid remove any such wreck they shall (without prejudice to the rights of sale conferred upon them by the foregoing provisions of this section) hold and dispose of the same or any such surplus of the proceeds of sale thereof as is referred to in subsection (2) of this section in accordance with such directions (if any) as may be given to them by the said receiver.

Lights.

Permanent
lights on
works.

47.—(1) The Undertakers shall at the outer extremity of the pier or any extension thereof below high-water mark of ordinary spring tides exhibit and keep burning every night from sunset to sunrise such lights (if any) and take such other steps for the prevention of danger to navigation as the Commissioners of Northern Lighthouses shall from time to time direct.

(2) If the Undertakers fail to comply in any respect with the provisions of this section they shall be liable to a penalty not exceeding twenty pounds and in the case of a continuing offence to an additional penalty not exceeding two pounds for every day on which after conviction thereof they so fail.

Provision
against
danger to
navigation.

48.—(1) In case of injury to or destruction or decay of the pier or any works constructed under the powers conferred by sections 11 and 12 of this Order or any part thereof so far as the same shall be constructed on under or over any tidal waters or tidal lands below high-water mark of ordinary spring tides the Undertakers shall lay down such buoys exhibit such lights or take such other means for preventing so far as may be danger to navigation as shall from time to time be directed by the Commissioners of Northern Lighthouses and shall apply to those Commissioners for directions as to the means to be taken.

(2) If the Undertakers fail to comply in any respect with the provisions of this section they shall be liable to a penalty not exceeding ten pounds and in the case of a continuing offence to an additional penalty not exceeding one pound for every day during which they fail after conviction thereof so to comply or refuse or neglect to obey any direction given in reference to the means to be taken.

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Miscellaneous.

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49. Notwithstanding anything in this Order any cables pipes or wires to be laid or placed under the powers of this Order by the Undertakers on under or over any tidal waters or tidal lands below high-water mark of ordinary spring tides shall be laid or placed at such depth under or such height over the tidal waters or tidal lands as the Board of Trade may require.

Cables
pipes or
wires under
or across
tidal waters.

50. The Undertakers shall have the appointment of meters and weighers within the limits of the pier.

Meters and
weighers.

51. All penalties under this Order shall be recovered and applied as penalties are recoverable and applicable under the Harbours Clauses Act 1847.

Recovery of
penalties.

52. Officers of the Board of Trade and Ministry of Transport British Sea-Fishery Officers and Police Officers acting in the execution of their duty shall at all times have free ingress passage and egress to along and from the pier without payment.

Officers
exempt
from rates.

53. The Undertakers shall within the limits of the pier be a local lighthouse authority for the purpose of the Merchant Shipping Act 1894.

Local
lighthouse
authority.

54. Nothing in this Order shall affect prejudicially any estate right power privilege or exemption of the Crown and in particular nothing herein contained shall authorise the Undertakers to take use or in any manner interfere with any portion of the shore or bed of the sea or of any river channel creek bay or estuary or any land heritages subjects or rights of whatsoever description belonging to His Majesty in right of His Crown and under the management of the Commissioners of Crown Lands or of the Board of Trade respectively without the consent in writing of the Commissioners of Crown Lands or the Board of Trade as the case may be on behalf of His Majesty first had and obtained for that purpose.

Crown
rights.

55. The pier shall be deemed to be for all purposes within the parish of Assynt and in the county of Sutherland.

Pier to be in
parish of
Assynt.

56. All costs charges and expenses of and incident to the preparing and obtaining of this Order and otherwise incurred in reference thereto shall be paid by the Undertakers.

Costs of
Order.

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A.D. 1937. **SCHEDULE** to which the foregoing Order refers.

I.—RATES ON VESSELS (OTHER THAN FISHING VESSELS)
ANCHORING OR MOORING AT THE PIER OR WITHIN THE
LIMITS OF THE PIER.

	Per registered ton. s. d.
For every vessel under 15 tons - - - - -	0 4
For every vessel of 15 tons and under 50 tons - - - - -	0 6
For every vessel of 50 tons and under 100 tons - - - - -	0 8
For every vessel of 100 tons and upwards - - - - -	1 0
All lighters from any vessel inside the limits of the pier shall be exempted from rates but if the vessel does not enter the limits of the pier every lighter shall pay for each trip - - - - -	
	0 2
For every vessel remaining within the limits of the pier after forty-eight hours per registered ton per week or part thereof - - - - -	1 0
For every yacht not carrying goods or passengers for hire	0 3

Proviso 1.—In the case of any vessel calling at the pier and also making or attempting to make calls at four other piers or ports during the same trip the tonnage rates shall not be charged on the registered tonnage of the vessel but in lieu thereof there shall be made in respect of such vessel on each call a charge of twenty shillings and in addition a rate not exceeding one shilling per ton on the cargo landed or shipped at the pier whichever is the greater. In calculating for this purpose the tonnage of cargo so landed or shipped fifteen passengers with their free luggage shall be computed as equal to one ton of goods and three horses or bulls or cows or five ponies or ten calves or stirks or fifteen sheep or lambs or pigs shall be computed as equal to one ton of goods and so in proportion for any less or broken number. Provided that for the purposes of the above provisions the quantity of cargo landed or shipped shall in no case be treated as less than one ton. Provided also that the above provisions shall not apply when the rates payable thereunder are greater than the rates on the registered tonnage of vessels contained in the said schedule.

Proviso 2.—In the case of other vessels belonging to owners engaged in a regular trade to the pier and making not fewer than forty calls at the pier between the first day of January and the thirty-first day of December in any one year there shall be charged per registered ton in respect of each such vessel or of any vessel the property of or chartered by the same owner substituted for such vessel on any trip not more than one-half of the actual

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tonnage rates for the time being in force Provided that up to forty A.D. 1937.
calls the rates shall be paid in full and on the completion of forty
calls one-half of such rates already paid shall be repaid to the
owners.

Proviso 3.—Ships' boats and boats entirely open with fresh
fish (other than herrings for curing) which carry no other cargo
nor any passenger shall be exempt from rates.

II.—RATES ON FISHING BOATS ANCHORING OR MOORING AT
THE PIER OR WITHIN THE LIMITS OF THE PIER.

For every boat engaged in the herring fishing as a com-
position in full of tonnage rates payable in advance :—

A.—If propelled by sails or oars :—			s.	d.
(1) If under 15 tons register	-	per quarter	1	3
(2) If 15 tons register or over	-	per quarter	1	6
B.—If propelled by steam or any other mechanical power other than sails or oars :—				
(1) If under 40 feet of keel	-	per quarter	1	3
(2) If over 40 feet of keel and under 50 tons register	- - - -	per quarter	1	6
(3) If over 40 feet of keel and of 50 tons register or over	- - - -	per quarter	1	9

For every boat engaged in the white fishing or other
fishing than the herring fishing as a composition for any
fishing season payable in advance :—

A.—If propelled by sails or oars :—				
(1) If under 15 tons register	-	per quarter	1	3
(2) If 15 tons register or over	-	per quarter	1	6
B.—If propelled by steam or any other mechanical power than sails or oars :—				
(1) If under 40 feet of keel	-	per quarter	1	3
(2) If over 40 feet of keel and under 50 tons register	- - - -	per quarter	1	6
(3) If over 40 feet of keel and of 50 tons register or over	- - - -	per quarter	1	9

For every boat discharging fish of any description not
paying the above composition dues :—

A.—If propelled by sails or oars :—				
(1) If under 15 tons register	- -	per day	0	6
(2) If 15 tons register or over	- -	per day	0	8
B.—If propelled by steam or any other mechanical power other than sails or oars :—				
(1) If under 50 tons register	- -	per day	0	6
(2) If 50 tons register or over	- -	per day	0	8

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A.D. 1937. For every fishing boat of any description anchoring or mooring at the pier or within the limits of the pier wind-bound or on passage - - - - - per day s. d.
1 0

For every fishing boat other than as above anchoring or mooring at the pier or within the limits of the pier :—

A.—If propelled by sails or oars :—

(1) If under 15 tons register - - - per day 1 0
(2) If 15 tons register or over - - - per day 1 6

B.—If propelled by steam or any other mechanical power other than sails or oars :—

(1) If under 40 feet of keel - - - per day 1 0
(2) If over 40 feet of keel - - - per day 1 6

Beaching Ground for Boats.

For every herring boat or white fishing boat hauled up for the season :—

(1) If under 20 feet of keel - - - - - 2 6
(2) If over 20 feet of keel - - - - - 5 0

The above charges shall be payable in respect of any hull lying within the limits of the pier for the purposes of being completed or engined and also for boats lying within the limits of the pier waiting for or undergoing repairs.

In the event of any boat not paying the above composition dues remaining within the limits of the pier more than 24 hours the above rates shall be payable for the first 24 hours and for each 24 hours or part thereof thereafter.

III.—RATES IN RESPECT OF ANIMALS AND GOODS SHIPPED
UNSHIPPED OR TRANSHIPPED AT THE PIER.

	Per	s.	d.
Aerated waters - - - - -	ton	1	8
Agricultural implements - - - - -	ton	1	0
Alum - - - - -	ton	1	0
Ammonia - - - - -	ton	1	4
Anchors iron or steel - - - - -	ton	1	0
Animals live :—			
Asses - - - - -	each	0	6
Bulls - - - - -	each	0	9
Calves - - - - -	each	0	2
Cows and oxen - - - - -	each	0	4
Dogs - - - - -	each	0	2
Goats - - - - -	each	0	1
Horses - - - - -	each	0	6
Lambs - - - - -	score	0	6
Mules - - - - -	each	0	6

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Animals live— <i>continued</i> .							Per	s.	d.	A.D. 1937.
Pigs	-	-	-	-	-	-	- each	0	2	—
Sheep	-	-	-	-	-	-	score	1	0	
Not otherwise specified	-	-	-	-	-	-	- each	0	3	
Aniseed	-	-	-	-	-	-	2½ cwt.	0	3	
Arrowroot	-	-	-	-	-	-	2½ cwt.	0	3	
Asphalt	-	-	-	-	-	-	- ton	1	0	
Ale beer and porter :—										
In casks	-	-	-	-	-	-	54 gallons	0	10	
Bottled	-	-	-	-	-	-	gross	1	6	
Bacon	-	-	-	-	-	-	- cwt.	0	1	
Ballast	-	-	-	-	-	-	- ton	0	4	
Bark	-	-	-	-	-	-	- ton	1	0	
Barrels and casks empty (not being returned empties)	-	-	-	-	-	-	each	0	1	
Bars iron or steel	-	-	-	-	-	-	- ton	1	4	
Baskets :—										
Over 12 ins. diameter	-	-	-	-	-	-	dozen	0	2	
Under 12 ins. diameter	-	-	-	-	-	-	dozen	0	1	
Biscuits	-	-	-	-	-	-	2½ cwt.	0	3	
Bleaching powder	-	-	-	-	-	-	- ton	1	0	
Blubber	-	-	-	-	-	-	252 gallons	1	0	
Boats :—										
12 to 16 feet keel	-	-	-	-	-	-	- each	3	0	
16 to 20 feet keel	-	-	-	-	-	-	- each	4	6	
20 feet keel and above	-	-	-	-	-	-	- each	5	0	
Cobles :—										
12 to 16 feet long	-	-	-	-	-	-	- each	2	6	
16 to 20 feet long	-	-	-	-	-	-	- each	3	0	
All other boats and cobles in proportion.										
Bolts iron or steel	-	-	-	-	-	-	- ton	1	4	
Bones for manure	-	-	-	-	-	-	- ton	0	6	
Books	-	-	-	-	-	-	- cwt.	0	4	
Boots and shoes	-	-	-	-	-	-	2½ cwt.	0	3	
Bottles	-	-	-	-	-	-	gross	0	2	
Boxes empty	-	-	-	-	-	-	- each	0	1	
Brass	-	-	-	-	-	-	- ton	1	4	
Bread	-	-	-	-	-	-	2½ cwt.	0	3	
Bricks :—										
Common	-	-	-	-	-	-	1,000	0	8	
Fireclay and bath	-	-	-	-	-	-	1,000	0	8	
Brimstone	-	-	-	-	-	-	- ton	1	4	
Brooms and brushes	-	-	-	-	-	-	gross	1	0	
Broom and brush handles	-	-	-	-	-	-	gross	1	0	
Bulrushes or osiers	-	-	-	-	-	-	- cwt.	0	2	
Butter	-	-	-	-	-	-	- cwt.	0	1	
Cabbages	-	-	-	-	-	-	2½ cwt.	0	3	
Calcium-chloride	-	-	-	-	-	-	- ton	1	0	
Candles	-	-	-	-	-	-	2½ cwt.	0	3	

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	Per	s.	d.
Canvas - - - - -	ton	2	0
Carpets and rugs - - - - -	ton	2	0
Carrots - - - - -	2½ cwt.	0	3
Castings iron or steel - - - - -	ton	1	4
Cement - - - - -	ton	1	6
Chaff - - - - -	ton	0	6
Chains iron or steel - - - - -	ton	1	4
Chalk - - - - -	ton	0	8
Charcoal - - - - -	ton	0	8
Cheese - - - - -	cwt.	0	1
Chemicals not otherwise specified - - - - -	ton	1	4
Chimney pots clay - - - - -	hundred	1	4
Chimney pots or tops metal - - - - -	each	0	1
Chinaware - - - - -	2½ cwt.	0	4
Cider - - - - -	ton	1	0
Cigarettes and cigars - - - - -	cwt.	0	3
Cinders - - - - -	ton	0	6
Clay - - - - -	ton	0	2
Cloth - - - - -	2½ cwt.	0	2
Coal - - - - -	ton	0	3
Cocoa - - - - -	2½ cwt.	0	3
Coffee - - - - -	2½ cwt.	0	3
Coke - - - - -	ton	0	6
Confectionery - - - - -	2½ cwt.	0	3
Copper - - - - -	cwt.	0	2
Copperas - - - - -	ton	1	4
Coprolites - - - - -	ton	1	0
Cordage - - - - -	ton	1	0
Cork - - - - -	ton	0	8
Corkwood - - - - -	ton	0	8
Corn meal &c. :—			
Barley - - - - -	quarter	0	2
Beans - - - - -	quarter	0	2
Bran - - - - -	quarter	0	2
Flour - - - - -	quarter	0	2
Maize (Indian corn) - - - - -	quarter	0	2
Malt - - - - -	quarter	0	3
Oats - - - - -	quarter	0	2
Oatmeal - - - - -	280 lbs.	0	2
Peas - - - - -	quarter	0	2
Rye - - - - -	quarter	0	2
Tares - - - - -	quarter	0	2
Wheat - - - - -	quarter	0	2
Cotton manufactured - - - - -	ton	1	0
Cotton raw - - - - -	ton	1	0
Cotton wool - - - - -	ton	1	0
Culm - - - - -	ton	0	3

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	Per	s.	d.	A.D. 1937.
Drugs - - - - -	2½ cwt.	0	2	—
Dye stuffs not otherwise specified - - - - -	2½ cwt.	0	3	
Earthenware - - - - -	5 cwt.	0	8	
Eggs - - - - -	2½ cwt.	0	4	
Emery - - - - -	- ton	0	6	
Esparto grass - - - - -	- ton	0	6	
Feathers - - - - -	- ton	0	6	
Felt - - - - -	- ton	0	6	
Fish :—				
Crabs - - - - -	dozen	0	1	
Herrings :—				
Fresh - - - - -	37½ gallons	0	3	
Cured - - - - -	26½ gallons	0	3	
Lobsters - - - - -	dozen	0	1	
Mackerel - - - - -	- 120	0	3	
Mussels - - - - -	- ton	0	4	
Oysters - - - - -	- ton	0	8	
Salmon - - - - -	2½ cwt. or £1 value	2	0	
Smelts - - - - -	- ton	0	2	
Not otherwise specified :—				
Fresh or cured - - - - -	- ton	0	4	
Salted - - - - -	- ton	0	3	
Fixtures for buildings such as doors and wooden frames				
	each	0	1	
Flax - - - - -	- ton	1	4	
Fruit not otherwise specified - - - - -	2½ cwt.	0	3	
Furniture household - - - - -	- ton	0	8	
Flour - - - - -	280 lbs.	0	2	
Game - - - - -	2½ cwt.	0	3	
Glass :—				
Broken - - - - -	- ton	1	0	
Window - - - - -	- ton	1	0	
Glassware - - - - -	2½ cwt.	0	4	
Glue - - - - -	2½ cwt.	0	3	
Gramophones and wireless sets - - - - -	- each	1	0	
Granite - - - - -	16 cubic feet	0	4	
Grates - - - - -	- ton	1	0	
Gravestones - - - - -	- ton	1	0	
Grease and tallow - - - - -	2½ cwt.	0	3	
Grindstones - - - - -	- each	0	2	
Groceries not otherwise specified - - - - -	2½ cwt.	0	3	
Gunpowder - - - - -	100 lbs.	0	3	
Gypsum - - - - -	- ton	0	3	
Haberdashery - - - - -	2½ cwt.	0	2	
Hams - - - - -	- each	0	1	
Hares - - - - -	dozen	0	2	
Hair - - - - -	- ton	1	0	

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	Per	s.	d.
Hardware - - - - -	2½ cwt.	0	3
Hats and millinery - - - - -	2½ cwt.	0	3
Hay - - - - -	ton	1	6
Hearthstones - - - - -	ton	1	8
Hemp - - - - -	ton	1	4
Hides and skins—Sheep and calves - - - - -	120	1	6
Hides :—			
Lambs - - - - -	120	0	5
Horse or ox—salted or dried - - - - -	ton	1	4
Hoops :—			
Wooden - - - - -	1,500	1	0
Iron or steel - - - - -	ton	1	4
Hops - - - - -	2½ cwt.	0	3
Horns - - - - -	ton	1	4
Husbandry utensils - - - - -	2½ cwt.	0	2
Ice - - - - -	ton	1	0
Indigo - - - - -	2½ cwt.	0	3
Jute - - - - -	ton	1	0
Kelp - - - - -	ton	0	8
Lard - - - - -	2½ cwt.	0	3
Lead black red white - - - - -	ton	1	4
Lead sheet - - - - -	ton	1	4
Leather - - - - -	ton	1	4
Lemons - - - - -	2½ cwt.	0	3
Lime - - - - -	ton	0	8
Limestone - - - - -	ton	0	8
Linseed - - - - -	quarter	0	2
Lint - - - - -	ton	1	0
Loam - - - - -	ton	0	3
Machines and machinery not otherwise specified - - - - -	ton	1	6
Manure :—			
Artificial - - - - -	ton	0	8
Street stable or farmyard - - - - -	ton	0	2
Marble - - - - -	ton	0	3
Masts and spars wooden :—			
Not exceeding 16 feet in length - - - - -	each	0	6
Above 16 feet in length - - - - -	each	1	0
Mats - - - - -	2½ cwt.	0	2
Meal—see corn.			
Meat - - - - -	cwt.	0	2
Milk - - - - -	can or cask	0	1
Mill stones - - - - -	each	0	8
Mineral waters - - - - -	ton	1	8
Molasses - - - - -	42 gallons	0	3
Moss litter - - - - -	ton	0	3
Musical instruments not otherwise specified - - - - -	2½ cwt.	0	3
Nails iron or steel - - - - -	ton	0	8

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Nuts iron or steel - - - - -	ton	0	8	—
Nuts with or without husks - - - - -	ton	1	4	
Oakum - - - - -	ton	1	0	
Oars - - - - -	dozen	0	4	
Ochre - - - - -	ton	0	8	
Oil - - - - -	42 gallons	0	3	
Less quantities - - - - -	10 gallons	0	1	
Oilcake - - - - -	ton	1	6	
Onions - - - - -	2½ cwt.	0	3	
Oranges - - - - -	2½ cwt.	0	3	
Ore - - - - -	ton	0	8	
Paints and colours - - - - -	ton	0	8	
Paper - - - - -	ton	1	0	
Patent fuel - - - - -	ton	0	8	
Paving stones - - - - -	16 cubic feet	0	4	
Peats - - - - -	ton	0	1	
Pewter - - - - -	ton	0	8	
Pictures - - - - -	2½ cwt.	0	3	
Pig iron - - - - -	ton	0	8	
Pipe clay - - - - -	ton	0	3	
Pipes drain :—				
Other than iron or steel - - - - -	1,000	0	4	
Iron or steel - - - - -	ton	1	0	
Pipes tobacco - - - - -	2½ cwt.	0	3	
Piping lead - - - - -	ton	1	0	
Pitch - - - - -	280 lbs.	0	4	
Plants shrubs or trees - - - - -	2½ cwt.	0	3	
Plaster of Paris - - - - -	ton	0	6	
Plates iron or steel - - - - -	ton	1	4	
Potatoes - - - - -	ton	1	6	
Poultry - - - - -	each	0	1	
Preserved fish fruit meat and provisions - - - - -	2½ cwt.	0	3	
Pyrites - - - - -	ton	0	8	
Rabbits dead - - - - -	dozen	0	2	
Rags - - - - -	ton	2	0	
Rails iron or steel - - - - -	ton	1	4	
Resin - - - - -	2½ cwt.	0	3	
Rice - - - - -	quarter	0	2	
Ropes :—				
New - - - - -	ton	2	0	
Old - - - - -	ton	1	6	
Rods iron and steel - - - - -	ton	1	4	
Saddlery - - - - -	cwt.	0	2	
Sails - - - - -	ton	2	0	
Salt - - - - -	ton	1	6	
Saltpetre - - - - -	ton	0	6	
Sand - - - - -	ton	0	4	

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	Per	s.	d.
Scrap iron or steel - - - - -	ton	1	0
Screws iron or steel - - - - -	ton	1	4
Scythes - - - - -	ton	0	1
Scythe stones - - - - -	score	0	1
Seeds agricultural and vegetable not otherwise specified	ton	2	0
Sewing machines - - - - -	each	0	3
Sheets iron or steel - - - - -	ton	1	4
Shot lead - - - - -	ton	1	4
Shovels and spades - - - - -	dozen	0	1
Slates common - - - - -	1,000	1	6
Slates writing - - - - -	2½ cwt.	0	3
Snuff - - - - -	ton	2	6
Soap - - - - -	ton	2	0
Soda - - - - -	ton	0	3
Spirits—see wines.			
Spirits of turpentine - - - - -	10 gallons	0	5
Starch - - - - -	ton	0	3
Stationery - - - - -	cwt.	0	4
Staves prepared for casks - - - - -	1,000	1	0
Stoneware - - - - -	5 cwt.	0	8
Stoves - - - - -	ton	1	0
Straw - - - - -	ton	1	6
Stucco - - - - -	ton	0	6
Sugar - - - - -	ton	1	6
Tar - - - - -	42 gallons	0	2
Tea - - - - -	cwt.	0	3
Tiles roofing - - - - -	1,000	1	0
Tin - - - - -	ton	1	4
Tinplate - - - - -	ton	1	4
Tobacco manufactured (except cigarettes and cigars)	cwt.	0	2
Tow - - - - -	ton	1	0
Toys - - - - -	2½ cwt.	0	3
Turnips - - - - -	ton	1	0
Turpentine - - - - -	42 gallons	0	5
Twine - - - - -	ton	1	0
Varnish - - - - -	ton	0	8
Vegetables not otherwise specified - - - - -	2½ cwt.	0	3
Vehicles :—			
Mechanically propelled—			
Bicycle - - - - -	each	0	4
Bicycle (with sidecar) and tricycle - - - - -	each	0	8
Other - - - - -	each	1	4
Not mechanically propelled—			
Horsedrawn :			
Two-wheeled - - - - -	each	0	6
Four-wheeled - - - - -	each	0	8

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Vehicles—*continued*.

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Not mechanically propelled— <i>continued</i> .						Per	s.	d.
Pedal :								
Bicycle	-	-	-	-	-	- each	0	2
Tricycle	-	-	-	-	-	- each	0	4
Barrows :								
One-wheeled	-	-	-	-	-	- each	0	2
Two or more wheeled	-	-	-	-	-	- each	0	3
Vinegar	-	-	-	-	-	42 gallons	0	4
Vitriol	-	-	-	-	-	10 gallons	0	2
Whalebone	-	-	-	-	-	- ton	2	6
Wheels carriage or cart	-	-	-	-	-	- pair	0	6
Whitening	-	-	-	-	-	- ton	0	3
Wines and spirits	-	-	-	-	-	54 gallons	1	0
Wire iron or steel	-	-	-	-	-	- ton	1	4

Wood viz. :—

All kinds of foreign timber square and sawn

per 50 cubic feet 1 0

Home and foreign round timber and spars

per 40 cubic feet 1 0

Cart wheel spokes and felloes - - per 40 pieces 0 3

Wedges - - - - - per 1,000 pieces 1 0

Pitprops not exceeding 6 inches in average diameter

per 50 cubic feet 0 9

Wainscot - - - - - per 50 cubic feet 1 3

Deal ends 3 inches thick and under 4 feet in length and

firewood - - - - - per 50 cubic feet 0 6

Rickers under 30 feet in length and under 4 inches in

diameter - - - - - per dozen 0 3

Handspikes - - - - - per dozen 0 4

Treenails - - - - - per 1,000 lineal feet 0 6

Wood by weight :—

Bar wood box wood Brazil wood cam wood ebony

fustic lignum vitae logwood Nicaragua wood red

wood sassafras &c. - - - - - per ton 2 0

Mahogany - - - - - per 40 feet or ton 2 0

Wood staves and billets :—

Herring barrel billets - - - per 50 cubic feet 1 6

Herring barrel staves per 1,000 superficial feet 1 2

Wool - - - - - cwt. 0 1

Worsted - - - - - cwt. 0 1

Yarn cotton - - - - - ton 1 4

Yeast - - - - - 2½ cwt. 0 3

Zinc - - - - - ton 1 4

For all articles not specified in this part of the schedule sums may be charged equal to the rate payable in respect of goods specified therein which are as nearly as may be of like nature package and quantity.

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IV.—RATES FOR THE USE OF CRANES WEIGHING MACHINES
AND SHEDS.

1. *Cranes.*

	s.	d.
All goods or packages not exceeding one ton - - -	0	3
Exceeding one ton and not exceeding two tons - - -	0	4
Exceeding two tons and not exceeding three tons - - -	0	6
Exceeding three tons and not exceeding four tons - - -	0	8
Exceeding four tons and not exceeding five tons - - -	0	10
Exceeding five tons and not exceeding six tons - - -	1	0
Exceeding six tons and not exceeding seven tons - - -	1	2
Exceeding seven tons and not exceeding eight tons - - -	1	4
Exceeding eight tons and not exceeding nine tons - - -	1	8
Exceeding nine tons and not exceeding ten tons - - -	2	0
Exceeding ten tons - - - - -	3	0

2. *Weighing Machines.*

For goods weighed for each ton or part of a ton - - -	0	2
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3. *Sheds.*

For each ton or 40 cubic feet of goods which shall remain in any shed on the pier for a longer time than forty-eight hours the sum of threepence and the sum of one penny halfpenny per ton or 40 cubic feet for each day during which such goods shall remain after the first forty-eight hours.

V.—RATES FOR SUPPLYING WATER.

	£	s.	d.
For each 100 gallons of water supplied to any vessel	0	0	6

VI.—RATES FOR USE OF PIER.

For every passenger or other person landing on the pier or embarking from the pier on board of any vessel or boat for each time any sum not exceeding - - -	0	0	2
For each article of luggage not carried by the passenger and exceeding one hundredweight - - - - -	0	0	2
For every person using the pier for the purpose of walking for exercise pleasure or any other purpose except for bathing embarking or disembarking for each time any sum not exceeding - - - - -	0	0	2
For every bathchair (including attendant) taken on the pier for each time any sum not exceeding - - -	0	0	6
For every perambulator (including attendant) taken on the pier for each time any sum not exceeding - -	0	0	6

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For every person using the pier for the purpose of bathing any sum not exceeding - - - - -	0	1	0	—
For every master of any vessel lying outside the limits of the pier using the pier for the purposes of going to or returning from his own vessel an annual sum not exceeding - - - - -	1	0	0	

The master and every member of the crew of any vessel lying within the limits of the pier shall be entitled to use the pier free of charge for the purpose of landing from or embarking on board his or their vessel.

NOTES WITH REFERENCE TO THE FOREGOING SCHEDULE.

1. All returned empties are exempted from payment of rates.
2. All goods landed and reshipped on board the same or any other vessel shall be liable to one rate only provided that the goods were consigned in the first instance from the original forwarding point through to the destination to which they are reshipped and no change of ownership of the goods has in the meantime taken place.
3. In charging the rates on goods weighed or measured the gross weight or measurement shall be taken (Fractional parts of any weight measure number or value shall be charged proportionately and the minimum charge for a single package shall be one penny.)

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